



File No.: EXP202210635

RESOLUTION No.: R/00075/2023

Considering the complaint filed on August 29, 2022, before this Agency by A.A.A. (hereinafter the complainant) against BANCO BILBAO VIZCAYA ARGENTARIA, S.A. (hereinafter the respondent), for not having duly attended to their right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant exercised their right of access against the respondent with NIF A48265169, and their request, as stated by the complainant, did not receive the legally established response. The complainant states that on July 13, 2022, they requested access to all transactions of a bank account that is in default (indicating the specific account number), and their request has not been attended to.

The complainant received a response, in which they were informed of the existence of default on another account, but this response makes no reference to the right of access regarding the account referred to by the complainant in their request and for which they provided the number.

The complainant submits various documents related to the complaint filed with this Agency and regarding the exercise of the right exercised.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed before the AEPD, consisting of transferring them to the Data Protection Delegates designated by the controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month.

The respondent does not grant access to the transactions of the account because they state that they do not fall under the right of access and because the debt of that bank account was assigned to INTRUM. They only provide information about another account that the complainant has.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow understanding that the complainant's claims were satisfied. Consequently, on November 29, 2022, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing and informed the parties that the maximum period for resolving this procedure, which is understood to have commenced by means of the said admission agreement, will be six months.

The aforementioned agreement granted the respondent entity a hearing period, so that within ten working days they could present the allegations they deemed appropriate.

This entity submitted, in summary, the following allegations after the admission for processing:

"...the information corresponding to the assigned Credit will be transferred to INTRUM INVESTMENT NUMBER 1 DAC, with an address at the address indicated above, and that, in its capacity as the data controller, it will process your personal data solely for the purpose of managing the assigned credit rights, including the collection management of the same, as well as complying with the legal obligations applicable to INTRUM INVESTMENT NUMBER 1 DAC. The legal basis for the aforementioned transfer of personal data is the execution of the contract, also supported by the existence of a legal authorization..."

FOURTH: The allegations presented by the respondent have been forwarded to the complainant, so that, within fifteen working days, they may formulate any allegations they consider appropriate. The complainant has not submitted any allegations.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for the Protection of Data is competent to resolve this

matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as handling complaints filed by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

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In accordance with this regulation, prior to the admission for processing of the complaint that gives rise to this procedure, the same was forwarded to the responsible entity for analysis, requiring a response to this Agency within one month and proof of having provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their complaint accepted.”

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than in a

unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the responsible party.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the responsible party may request the affected party to specify the "data or processing activities referred to in the request." The right will be deemed granted if the responsible party provides remote access to the data, considering the request fulfilled (although the interested party may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive on more than one occasion within a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation of whether or not personal data concerning them is being processed and, in such case, the right of access to the personal data."

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization.

The possibility of obtaining a copy of the personal data being processed will not adversely affect the rights and freedoms of others; that is, the right of access will be granted in such a way that it does not affect the data of third parties.

In the case analyzed here, the claiming party exercised their right of access to the transactions of a bank account in their name, and their request was not attended to.

In principle, the respondent based its refusal on two issues: the first, that the request did not fall within the right of access, and the second, that they had transferred...

the account to another entity and therefore it was the new entity that now had the data.

In light of this refusal to comply with the right, the Agency admits the complaint for processing and the entity being complained about, in the allegations submitted, confirms its refusal to provide the data as it is in the hands of another entity to which the account has been transferred. Furthermore, the complainant states that all they have been provided with is information and transactions from a different bank account than the one indicated in their communication addressed to the respondent.

As previously mentioned, the complainant appears to have had two accounts, and one of them remains active with the entity being complained about. However, the complainant requests the transactions of the other account, which has been transferred.

It is curious that the respondent claims that the requested information does not fall under the right of access when it must provide the transactions of the transferred account and raises no issues in providing the transactions of the account it still holds, even without them being requested.

In summary, we have an entity, the respondent, that does not comply with the right under the premise that the requested data has been transferred to another entity. These data cannot be deleted but must be blocked, so regardless of whether they have been transferred, it must retain the data that has been generated up to the moment of their transfer in a blocked state.

Moreover, regarding this circumstance, it should be added that, in accordance with data protection regulations, when the deletion of data is warranted under Article 17 of the GDPR, physical deletion should not be carried out but rather blocking, as determined by Article 32 of the LOPDGDD, during the statute of limitations for actions to demand possible liabilities arising from processing. After this period, the data must be destroyed. Therefore, when the deletion of personal data is warranted because they are no longer necessary for the purpose that justified their processing, the blocking of the personal data being processed must be carried out. This action is subject to certain conditions aimed at ensuring and guaranteeing the affected party's right to the protection of their personal data.

The blocked data will be available to the Courts, the Public Prosecutor's Office, or other competent public administrations, particularly data protection authorities, for the demands of possible liabilities arising from processing and for the statute of limitations of these.

Therefore, the request for access must be addressed in accordance with the provisions of Article 15 of the GDPR, and the complainant must be provided with the data that was subject to processing, the purpose of this, the origin, and whether it was communicated to third parties.

Thus, the respondent's premise of not complying with the right due to the data having been transferred to another entity cannot be justified, just as the assertion that the transactions of an account do not constitute a right of access is also invalid.

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Finally, it should be clarified that the bank transactions of an account whose ownership is held contain data concerning the account holder, and therefore fall within the right of access.

Based on the above, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, and given that the requested right of access has not been complied with, this complaint is upheld.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by A.A.A. and to instruct BANCO BILBAO VIZCAYA ARGENTARIA, S.A. with NIF A48265169, to, within ten working days following the notification of this resolution, send to the complainant a certification addressing the requested right of access or deny it with justification indicating the reasons why the request cannot be complied with, in accordance with the provisions of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of the infringement considered in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to BANCO BILBAO VIZCAYA ARGENTARIA, S.A. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested

parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. 1037-281122

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